

This Court recognizes that “Providing access to justice for self-represented litigants is a priority for California courts.” (California Rules of Court, rule 10.960, subdivision (b).) “[W]hen a litigant is self-represented, a judge has the discretion to take reasonable steps, appropriate under the circumstances and consistent with the law and the canons, to enable the litigant to be heard.” (See also ABA Model Code of Jud. Conduct, canon 2, rule 2.2, com. 4 “[i]t is not a violation of this Rule [regarding impartiality and fairness] for a judge to make reasonable accommodations to ensure pro se litigants the opportunity to have their matters fairly heard”].) The canons and commentary thus provide a path to ensure a self-represented litigant can be fairly heard on the merits while the court maintains its impartiality and does not assume (or appear to assume) the role of advocate or partisan. (See Cal. Code Jud. Ethics, canon 3 [“a judge shall perform the duties of judicial office impartially, competently, and diligently”].)” (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434.)

At the same time, “[a] party proceeding *in propria persona* ‘is to be treated like any other party and is entitled to the same, but no greater[,] consideration than other litigants and attorneys.’” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985.) Indeed, “the *in propria persona* litigant is held to the same restrictive rules of procedure as an attorney.” [Citation.]” (*First American Title Co. v. Mirzaian* (2003) 108 Cal.App.4th 956, 958, fn. 1; see also *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.)

This is a “difficult balance” for the Court. (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434.) However, due to the serious errors of Plaintiff’s Motion, it would be error for the Court to grant the motion.

Tentative Decision

The Court DENIES, without prejudice, Plaintiff’s Motion to Compel. Plaintiff may re-file her motion if she so chooses, keeping in mind that the Notice of Motion, Motion and Declaration must all be signed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501697	RENEAU VS LOVE TRANSIT, INC.	MOTION FOR LEAVE TO INTERVENE ON BEHALF OF OBSIDIAN SPECIALTY INSURANCE AS INTERVENOR FOR LOVE TRANSIT

Tentative Ruling:

On 5/6/26, Obsidian Specialty Insurance Co. filed its Motion to Intervene and Proposed Complaint-in-Intervention.

Pursuant to Obsidian, “This Motion is made pursuant to Code of Civil Procedure Section 387(d) on the grounds that Obsidian provides automobile liability insurance to

Defendant LOVE TRANSIT INC., (hereinafter "Love Transit"). Defendant Love Transit has been unresponsive, unavailable, and otherwise absent since February 12, 2026, despite all reasonable efforts by its counsel and Obsidian. As such, and to avoid irreparable harm, Obsidian seeks to intervene to litigate the liability and damages issues on its own behalf." (Motion, p. 2:8-13.)

"The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code of Civil Procedure section 387(d)(2).) "Section 387 should be liberally construed in favor of intervention." (*Lindell v. Town of San Anselmo* (2006) 139 Cal.App.4th 1499, 1505; see also *Nasongkhla v. Gonzalez*, (1994) 29 Cal. App. 4th Supp.1.)

The Motion is procedurally proper. As of the writing of this tentative opinion, there has been no opposition to Obsidian's Motion.

Tentative Decision

The Court GRANTS Obsidian's Motion for Leave to Intervene. Obsidian is to file its Answer-in-Intervention within five days of notice of this ruling.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600194	CITY OF SAN JACINTO VS PATTI C. NEFF	MOTION FOR ORDER FOR PREJUDGMENT POSSESSION BY CITY OF SAN JACINTO

Tentative Ruling:

On 1/7/26, Plaintiff City of San Jacinto filed its complaint in eminent domain.

On 2/26/26, Plaintiff City of San Jacinto filed its Motion for prejudgment possession. According to the City's Motion, "This Motion is made pursuant to Code of Civil Procedure sections 1255.410 et seq., on the grounds that the City, as an entity with the power of eminent domain, is authorized to take prejudgment possession of the permanent road easement interest in the Property for public street improvements for the San Jacinto Street (Avenue) Safety Improvement Project in the City of San Jacinto, Riverside County, California, and for such other uses as are permitted, pursuant to section 37350 et seq. of the California Government Code and Code of Civil Procedure sections 1240.110 and 1240.120. The City is vested by law with authority to exercise the power of eminent domain to acquire private property for the construction of streets, bridges, and other public infrastructure." (Motion, p. 2:11-19.)

The Motion contains a notice to defendant that if they wish to oppose the motion, they must file and serve their opposition with 30 days. (Motion, p. 2:20-26.)